



Title: Driver Education

Code: IGAJ

Book: WJCC Policy Manual

Section I: Instruction

The Williamsburg James City County School Board offers a program of driver education in the high schools in the safe operation of motor vehicles. The program includes instruction concerning:

- alcohol and drug abuse;
- aggressive driving;
- the dangers of distracted driving, ~~and~~ speeding, and reckless driving, including driving at excessive speeds;
- motorcycle awareness;
- organ and tissue donor awareness;
- fuel-efficient driving practices; and
- traffic stops, including law-enforcement procedures for traffic stops, appropriate actions to be taken by drivers during traffic stops, and appropriate interactions with law-enforcement officers who initiate traffic stops.

Any student who participates in a driver education program must meet the academic requirements established by the Board of Education. No student is permitted to operate a motor vehicle without a learner's permit or a license. Necessary certification of students' academic standing and compliance with compulsory attendance laws is provided by the administration to the Department of Motor Vehicles upon request, in accordance with state law.

There will be a tuition fee for students taking driver education. The tuition charge will be set by the school board and will not exceed the limit established by the Department of Education for the behind-the-wheel portion of the program. The school board may waive the fee or surcharge in whole or in part for those students it determines cannot pay the fee or surcharge.

Driver's education instructors possess valid drivers' licenses and maintain satisfactory driving records. Any teacher of behind-the-wheel instruction who receives six or more demerit points in a 12-month period will be suspended from teaching driver's education for 24 months.

At the beginning of each school year and thereafter as necessary, the superintendent reports to the Department of Motor Vehicles the name and driver's license number of all persons providing instruction in driver education for the school division.

Adopted:

5/14/74

Revised:

4/11/84, 8/15/17, 6/20/23

Reviewed:

6/5/01

Legal References:

Code of Virginia, 1950, as amended §§ 22.1-205⁴; 22.1-205; 46.2-334; 46.2-340
8VAC20-340-10
8VAC20-720-80
Regulations of the Virginia Board of Education

Cross References:

JED, Student Absences/Excuses/Releases
JN, Student Fees, Fines and Charges

Additional Resources

[JED - Student Absences/Excuses/Releases](#)

[JN - Student Fees, Fines, and Charges](#)

[§ 22.1-204. Study of accident prevention](#)

[§ 22.1-205. Driver education programs](#)

[§ 46.2-334. Conditions and requirements for licensure of persons under 18.](#)

[§ 46.2-340. Information concerning school bus drivers and driver education instructors](#)

[8VAC20-340-10. Driver education program](#)

[8VAC20-720-80. Student fees and charges](#)

[Regulations of the Virginia Board of Education](#)



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There will be a tuition fee for students taking driver education. The tuition charge will be set by the school board and will not exceed the limit established by the Department of Education for the behind-the-wheel portion of the program. The school board may waive the fee or surcharge in whole or in part for those students it determines cannot pay the fee or surcharge.

Driver's education instructors possess valid drivers' licenses and maintain satisfactory driving records. Any teacher of behind-the-wheel instruction who receives six or more demerit points in a 12-month period will be suspended from teaching driver's education for 24 months.

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4/11/84, 8/15/17, 6/20/23

46 **Reviewed:**

47 6/5/01

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49 **Legal References:**

50 Code of Virginia, 1950, as amended §§ 22.1-205⁴; 22.1-205; 46.2-334; 46.2-340

51 8VAC20-340-10

52 8VAC20-720-80

53 Regulations of the Virginia Board of Education

54

55 **Cross References:**

56 JED, Student Absences/Excuses/Releases

57 JN, Student Fees, Fines and Charges

58

59 **Additional Resources**

60 [JED - Student Absences/Excuses/Releases](#)

61 [JN - Student Fees, Fines, and Charges](#)

62 [§ 22.1-204. Study of accident prevention](#)

63 [§ 22.1-205. Driver education programs](#)

64 [§ 46.2-334. Conditions and requirements for licensure of persons under 18.](#)

65 [§ 46.2-340. Information concerning school bus drivers and driver education instructors](#)

66 [8VAC20-340-10. Driver education program](#)

67 [8VAC20-720-80. Student fees and charges](#)

68 [Regulations of the Virginia Board of Education](#)

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DRIVER EDUCATION

The **[BLANK]** School Board offers a program of driver education in the high schools in the safe operation of motor vehicles.¹ The program includes instruction concerning:

- alcohol and drug abuse;
- aggressive driving;
- the dangers of distracted driving, speeding, and reckless driving, including driving at excessive speeds;
- motorcycle awareness;
- organ and tissue donor awareness;
- fuel-efficient driving practices; **and**
- traffic stops, including law-enforcement procedures for traffic stops, appropriate actions to be taken by drivers during traffic stops, and appropriate interactions with law-enforcement officers who initiate traffic stops.

The program also includes an additional minimum 90-minute parent/student driver education component as part of the classroom portion of the driver education curriculum.² However, no student who is (1) at least 18 years of age, (2) an emancipated minor, or (3) an unaccompanied minor who is not in the physical custody of the student's parent or guardian is required to participate in the parent/student driver education component. The parent/student driver program emphasizes (i) parental responsibilities regarding juvenile driver behavior, (ii) juvenile driving restrictions pursuant to the Code of Virginia, (iii) the dangers of driving while intoxicated and underage consumption of alcohol, and (iv) the dangers of distracted driving, speeding, and reckless driving, including driving at excessive speeds.

FOOTNOTES ARE FOR REFERENCE ONLY AND SHOULD BE REMOVED FROM FINAL POLICY.

¹ School boards are not required to offer driver education programs. A division that does not offer such a program should not adopt this policy. School boards that do offer driver education may offer classroom training or behind-the-wheel instruction or both; school boards are strongly encouraged to offer behind-the-wheel education during, and to make behind-the-wheel education training available during school hours and before or after school hours, including on weekends. Divisions that do not offer behind-the-wheel should not adopt the third paragraph of this policy and should remove Policy JN as a Cross Reference to this policy.

² In Planning District 8, the parent/student driver education component must be administered in-person. Va. Code § 22.1 205. In other Planning Districts, the parent/student driver education component may be administered either in-person or online by a public school or a driver training school that is licensed as a computer-based driver education provider. *Id.* The participation of the student's parent or guardian in the parent/student driver education component is required in Planning District 8 unless the student is otherwise exempted from participation in the parent/student driver education component. In other Planning Districts, the participation of the student's parent or guardian in the parent/student driver education component is encouraged but is not required.

The School Board establishes fees, that do not exceed the limit established by the Department of Education, for the behind-the-wheel portion of the program. The School Board may waive the fee or surcharge in whole or in part for those students it determines cannot pay the fee or surcharge.

Any student who participates in a driver education program must meet the academic requirements established by the Board of Education. No student is permitted to operate a motor vehicle without a learner's permit or a license. Necessary certification of students' academic standing and compliance with compulsory attendance laws is provided by the administration to the Department of Motor Vehicles upon request, in accordance with state law.

Driver education instructors possess valid driver's licenses and maintain satisfactory driving records. Any teacher of behind-the-wheel instruction who receives six or more demerit points in a 12-month period will be suspended from teaching driver education for 24 months.³

At the beginning of each school year and thereafter as necessary, the Superintendent reports to the Department of Motor Vehicles the name and driver's license number of all persons providing instruction in driver education for the school division.

Adopted:

Legal Ref.: Code of Virginia, 1950, as amended, §§ 22.1-205, 46.2-334, 46.2-340.

8 VAC 20-340-10, 8 VAC 20-720-80.

Cross Ref.:	JED	Student Absences/Excuses/Dismissals
	JN	Student Fees, Fines, and Charges

FOOTNOTES ARE FOR REFERENCE ONLY AND SHOULD BE REMOVED FROM FINAL POLICY.

³ Each school board can determine what a satisfactory driving record is for driver education instructors. Boards are free to include requirements which are more or less stringent than those included here.